

2026 BALLOT QUESTIONS

2026 Ballot Question Pamphlet compiled by the Office of the Secretary of State

The text of this pamphlet is available on our website at www.sdsos.gov.

The title, explanation, and effect of a vote for each ballot question were provided by the Attorney General. No other statements on this pamphlet reflect the opinion of the Secretary of State or Attorney General.

The information was compiled by the office of the Secretary of State as required by law and provided by the authors. The information does not reflect the position of the Secretary of State's office regarding the legality or effect of the amendments or measures. The Secretary of State is not responsible for the contents, objectivity, or accuracy of the statements written by the proponent and opponent authors in this brochure.

12-13-23. Distribution of public information. The secretary of state shall distribute public information on any amendment to the Constitution, initiated measure, or referred law submitted to the electors for approval. The secretary of state shall compile the public information by printing a statement in support of the amendment to the Constitution, initiated measure, or referred law written by its proponents, if any can be identified, and a statement against the amendment to the Constitution, initiated measure, or referred law written by its opponents, if any can be identified. No statement written by a proponent, or an opponent may exceed three hundred words in length. The secretary of state is not responsible for the contents, objectivity, or accuracy of the statements written by the proponents and opponents. The pamphlet shall also include the attorney general's title, explanation, and a recitation of the effect of a "Yes" or "No" vote as written pursuant to § 12-13-9 or 12- 13-25.1; number of pages and sections in the proposed or referred language; and, if applicable, a fiscal note.

Please feel free to photocopy and distribute this pamphlet. You may also bring the pamphlet with you to vote at your polling place.

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Constitutional amendments and initiated and referred measures approved by majority vote will become effective on the first day of July after the completion of the official canvass by the State Canvassing Board. (SDCL 2-1-12)

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Constitutional Amendment L

Title: An Amendment to the South Dakota Constitution Requiring that a Proposed Constitutional Amendment or Revision Receive an Affirmative Vote of Sixty Percent of the Votes Cast.

Attorney General Explanation: The State Constitution provides that any proposed constitutional amendment or revision must be submitted to the voters for approval. Currently, a proposed constitutional amendment or revision becomes part of the Constitution if approved by a majority of the votes cast.

This proposed Constitutional Amendment increases the number of votes required for a proposed constitutional amendment or revision to become part of the Constitution. If passed, further constitutional amendments must receive an affirmative vote of sixty percent of the votes cast to be implemented.

Vote "Yes" to adopt the amendment.
Vote "No" to leave the Constitution as it is.

The text of this constitutional amendment is one page long containing two sections.

Pro – Constitutional Amendment L	Con – Constitutional Amendment L
We encourage you to **VOTE YES on AMENDMENT L** to **Protect Our Constitution**. In recent years, political activists have tried to change South Dakota's Constitution by inserting policy changes into our state's founding document. Currently, South Dakota's Constitution can be changed by a simple majority of votes cast. Amendment L raises that threshold to sixty percent. By contrast, the U.S. Constitution is much harder to amend. Changes to the U.S. Constitution require a 2/3 vote of the U.S. House and Senate, followed by ratification of 3/4 of the states. Our state Constitution provides a framework of governance, while laws passed by the Legislature or by voter initiative outline policy within the framework. A simple majority works well for ordinary laws, but a higher threshold is needed for changing our Constitution, which is meant to protect core rights. With Amendment L, only changes with broad, strong support from South Dakotans become part of our framework of governance. This doesn't mean we can't make changes; it simply means that our foundational document should not be subject to the political whims of a given election cycle. Let's keep our Constitution secure for future generations. **VOTE YES on AMENDMENT L**. **John Hughes**, State Representative **Dale Bartscher**, South Dakota Right to Life **Nathan Sanderson**, South Dakota Retailers	At its core, Amendment L seeks to establish minority rule in South Dakota. It removes important checks and balances, making it easier for insiders in Pierre to make backroom deals and listen to out-of-state donors instead of the people who live here. Voters have already rejected this idea twice in recent years. In 2018, they defeated Amendment X, which proposed a 55% threshold. In 2022, they overwhelmingly rejected Amendment C, which would have required 60% approval for constitutional amendments with fiscal impacts. Amendment L goes even further by applying the 60% requirement to every future constitutional amendment. At some point, supporters of these proposals need to just listen to voters as they have spoken. South Dakota was the first state to give citizens the power to propose and vote on laws directly. That tradition exists so ordinary people, not just politicians or powerful interests, can shape their government when needed. That power has been an important part of our political tradition for decades. Within that power lies a simple principle: the majority decides. If Amendment L passes, a small minority could block our state from holding politicians accountable. Our state motto says, "Under God, the People Rule." Amendment L would make it much harder for the people to have their say, even when a clear majority agrees. Protect majority rule. Don't give away your power. Vote **NO** on Amendment L. Chase Jensen, Dakota Rural Action Ryan Rolfs, South Dakota Education Association